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LAW 101: The Nigerian Legal System - Sources, Courts and Legal Reasoning

How law is made, applied and argued in Nigeria, explained for first-year law students

FACULTY PRIMER

Faculty Primer

Faculty of Law
Public Law | 100L

Written for students, by students.

Practical notes, worked examples, practice questions and a revision plan.

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Why this pack exists

LAW 101 is where law students learn that law is a system of sources and reasoning, not a list of rules. This pack covers the sources of Nigerian law, the court hierarchy, the doctrine of precedent, statutory interpretation and the IRAC method, with worked examples you can imitate in tutorials.

This is a student-written study companion, not a reproduced lecture handout or a leaked examination paper. Use it to organise the topics you are taught, practise the kind of thinking your course rewards, and walk into class with better questions.

What you will be able to do

- Identify and rank the sources of Nigerian law, including the Constitution, legislation, case law, custom and received English law.
- Explain the jurisdiction and hierarchy of Nigerian courts from the Supreme Court downwards.
- Apply the doctrine of stare decisis and distinguish ratio decidendi from obiter dictum.
- Structure a legal answer using issue, rule, application and conclusion.

How to use this pack

1. Skim the whole pack once in 20 minutes so you know what is inside.
2. Work through one section at a time with your lecture note and recommended text beside you.
3. Attempt the practice questions before reading the answers. Mark what you missed.
4. Use the final checklist to plan your revision week, one tick per study session.

> **Confirm your official course outline**
> Course codes, credit units and outlines can differ by department and session. Treat this pack as supplementary support and confirm the current outline with your lecturer, course rep or departmental handbook before an assessment.

Sources of Nigerian law

A source of law is an authority from which legal rules derive their validity. Hierarchy matters: a rule from a lower source cannot override a higher one.

- The Constitution: supreme and directly enforceable; inconsistent legislation is void to the extent of inconsistency.
- Legislation: Acts of the National Assembly, state laws, subsidiary legislation and bye-laws.
- Judicial precedent: decisions of superior courts create binding rules within their jurisdiction.
- Customary law: recognised as a source where it is not repugnant to natural justice, equity and good conscience, and is not incompatible with existing law.
- Received English law: common law, doctrines of equity and statutes of general application in force in England before 1 January 1900, received subject to local circumstances.
- Islamic law: applicable in the northern states and to personal matters where the parties submit to it.

> **Exam habit**
> When asked about sources, rank them. A Constitution-first answer shows you understand supremacy; a flat list does not.

Courts and jurisdiction

Jurisdiction is the power of a court to hear a matter. A court without jurisdiction cannot validly decide anything, however correct its reasoning.

- Supreme Court: apex court, mainly appeals; its decisions bind all lower courts.
- Court of Appeal: appeals from the Federal High Court, state High Courts, and election and other specialised tribunals.
- Federal High Court: federal matters including revenue, customs, banking, company law and certain fundamental rights applications.
- State High Courts: unlimited jurisdiction over civil and criminal matters within the state, subject to the Constitution.
- Magistrate and district courts: limited civil and criminal jurisdiction.
- Customary and Sharia courts of appeal: appeals in customary and Islamic personal law matters.

Precedent and legal reasoning

Stare decisis means standing by decided matters. A court must follow the ratio of a superior court in the same hierarchy, but only the ratio.

The ratio decidendi is the legal principle necessary to the decision. Obiter dicta are passing remarks that do not bind, though they may persuade.

Distinguishing a case is the advocate's main tool: show that the material facts differ so the earlier rule does not apply. Overruling is different - a higher court rejects the earlier rule itself.

- Ratio binds; obiter persuades.
- A court is bound by decisions of courts above it, not by courts of coordinate or lower rank.
- Persuasive precedent includes decisions from other common-law jurisdictions and the Privy Council.
- Statutory interpretation: literal rule, golden rule and mischief rule; also purposive interpretation.
- IRAC structure: Issue, Rule, Application, Conclusion. Never write the conclusion before the application.

PRACTICE, NOT PREDICTION

Check your understanding

These questions are written for this pack to test the ideas above. They are not past examination questions and do not predict what your lecturer will set. Answer first, then compare.

1. Why is the Constitution described as supreme?

Answer: Because section 1 of the 1999 Constitution provides that its provisions prevail over any other law, and inconsistent laws are void to the extent of the inconsistency.

2. Distinguish ratio decidendi from obiter dictum.

Answer: The ratio is the legal reasoning essential to the decision and binds lower courts. Obiter are incidental remarks that do not bind but may be persuasive.

3. State two requirements for a custom to be enforced as law.

Answer: It must be established by evidence, not be repugnant to natural justice, equity and good conscience, and not be incompatible with existing law. Any two of these.

4. Which court binds a State High Court in Nigeria?

Answer: The Court of Appeal and the Supreme Court, and the Supreme Court binds all courts in Nigeria.

5. Apply IRAC: a client was dismissed without a hearing.

Answer: Issue: whether dismissal without a hearing breaches fair hearing. Rule: section 36 of the Constitution guarantees fair hearing. Application: no opportunity was given to respond. Conclusion: the dismissal is likely void for breach of fair hearing.

Your 7-step action plan

Tick each step only when you have done it. A tick you cannot defend is worse than an empty box.

- [ ] Draw the Nigerian court hierarchy from memory with one line of jurisdiction for each.
- [ ] List the sources of Nigerian law in order of supremacy.
- [ ] Read one Supreme Court case and write out its ratio in two sentences.
- [ ] Find and label an obiter remark in a case summary.
- [ ] Write one IRAC answer of 300 words on a fair-hearing scenario.
- [ ] Learn the three rules of statutory interpretation with one example each.
- [ ] Meet a senior colleague and ask which LAW 101 topics appear most in assessments.

Keep going

One pack will not carry a semester. Pair this with your lecture notes, tutorials, and the past questions your department actually releases. If a topic still feels unclear, take a specific question to your lecturer or course rep - "I do not understand the difference between X and Y" gets a better answer than "I do not understand this course".

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YOUR WORKSPACE

Notes, questions and things to ask

Use this page in class or during revision. Write questions you could not answer instead of copying slides.

Three ideas I can now explain without notes:

A question I still cannot answer:

For my lecturer or course rep:

Next revision action and date: